

4.	WEBER VS. MORADO 2025-01511904	MOTION FOR PROTECTIVE ORDER The Motion for Protective Order by Defendants Corinne Morado, GenCare Connects, Inc.; I Care Hospice, Inc., and Daian Corporation (“Defendants”) is CONTINUED to 10/6/26 at 9:00 a.m., in Dept. C32. <u>Legal Standard:</u> Code of Civil Procedure sections 2033.040 and 2033.050 require a party serving more than 35 RFAs to provide a declaration stating the number of RFAs is warranted by the nature and complexity of the issues. Code of Civil Procedure section 2033.280 states in part: “(a) When requests for admission have been made, the responding party may promptly move for a protective order. This motion shall be accompanied by a meet and confer declaration under Section 2016.040. (b) The court, for good cause shown, may make any order that justice requires to protect any party from unwarranted annoyance, embarrassment, oppression, or undue burden and expense. This protective order may include, but is not limited to, one or more of the following directions: (1) That the set of admission requests, or particular requests in the set, need not be answered at all. (2) That, contrary to the representations made in a declaration submitted under Section 2033.050, the number of admission requests is unwarranted.” <u>Application:</u> Defendants assert Plaintiff has served excessive requests for admission. Specifically, Plaintiff served nine sets of RFAs totaling 282 RFAs to Defendants including separate sets of RFAs by each of the three Plaintiff/Cross-Defendants to each of the Defendants accompanied by form interrogatory 17.1. Defendants assert that all Defendants are essentially the same entity because Defendant Morado owns or controls the corporate Defendants. Plaintiff asserts that no Plaintiff has served any Defendant individually with more than 35 requests. However, Defendants assert that the RFAs ask “YOU” to admit various matters, with “YOU” defined as all Defendants/Cross-Complainants. Therefore, each Defendant is being asked to admit over 100 matters on behalf of all Defendants. The motion states that counsel attempted to meet and confer via email. (Tong Decl., ¶ 6.) However, counsel was required to meet
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		and confer in person or by telephone/videoconference before filing the motion. (Code Civ. Proc. §§ 2016.040, 2033.080(a).) The motion is therefore continued to allow the parties to comply with section 2016.040. Moving Defendants shall file and serve a three-page supplemental declaration, describing their compliance with this order and the status of the dispute, no later than nine court days before the continued hearing date. Plaintiff shall do the same no later than five court days before the hearing date. The Court expects the parties to work cooperatively to resolve discovery disputes. The Court is not inclined to award sanctions to either side in this matter because neither side has diligently attempted to resolve the dispute by proposing a reasonable compromise. However, if either side fails to diligently meet and confer, the Court may impose sanctions against that party or their counsel. Inability to resolve routine discovery disputes without Court intervention may result in the Court appointing a discovery referee at the parties' expense pursuant to Code of Civil Procedure section 639.
5.	QUERIDO VS. TEACHER 2022-01243394	MOTION TO TAX COSTS Defendant Theodore Michael Teacher's Motion to Tax Costs is GRANTED in part and DENIED in part as set forth below. Plaintiff's memorandum of costs is taxed in the amount of \$11,158.08. <u>Legal Standard</u> Code of Civil Procedure section 1032, subdivision (b) states: "Except as otherwise expressly provided by statute, a prevailing party is entitled as a matter of right to recover costs in any action or proceeding." Code of Civil Procedure section 1033.5 sets forth the specific items of costs which may and may not be recoverable in a civil action. (Code Civ. Proc. § 1033.5(a), (b).) An item not specifically allowable under subdivision (a) or specifically prohibited under subdivision (b) may nevertheless be recoverable in the court's discretion if "reasonably necessary to the conduct of the litigation rather than merely convenient or beneficial to its preparation." (Code Civ. Proc. § 1033.5(c)(2).) "If items on their face appear to be proper charges, the verified memorandum of costs is prima facie evidence of their propriety, and the burden is on the party seeking to tax costs to show they were not reasonable or necessary." (<i>Jones v. Dumrichob</i> (1998) 63 Cal.App.4th 1258, 1266.) Once the opposing party makes such a showing, in support of a motion to tax costs, the challenged items are put in issue and the burden shifts back to the party claiming them